

exceeding five pounds for each day during which the offence continues, and in respect of false returns and answers the offence shall be deemed to continue until a true return or answer has been made or given.

13. This Act may be cited as the Census of Production Act, 1906.

SCHEDULE.

LIST OF PERSONS REQUIRED TO MAKE RETURNS.

(A) The occupier of every factory or workshop within the meaning of the Factory and Workshop Act, 1901.

(B) The owner, agent, or manager of every mine and quarry.

(C) Every builder, that is to say, a person who, by way of trade or business, undertakes the construction or alteration of a building or any part thereof.

(D) Every person who by way of trade or business executes works of construction, alteration, or repair of railroads, tramroads, harbours, docks, canals, sewers, roads, embankments, reservoirs or wells, or of laying or altering gas or water pipes, or telegraphic, telephonic, or electric lines or works, or any other prescribed works.

(E) Every person who by way of trade or business gives out work to be done elsewhere than on his own premises.

(F) Every person carrying on any other trade or business which may be prescribed.

CHAPTER 50.

An Act to establish a Board of Trustees to manage the National Galleries of Scotland; and for other purposes.
[21st December 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act may be cited as the National Galleries of Scotland Act, 1906, and shall apply to Scotland only.

2. In this Act (unless the context otherwise requires)—

"The Board" shall mean the Board of Trustees established by this Act:

"Prescribed" shall mean prescribed by Order under the hand of the Secretary for Scotland; provided that every such Order shall be laid as soon as may be upon the table of both Houses of Parliament:

"The National Galleries of Scotland" shall, until otherwise prescribed, mean the several buildings situated in Edinburgh, and known as the Royal Institution, the National Gallery, and the National Portrait Gallery, and shall include any other buildings which may be prescribed :

"Buildings" shall include any land held with or for the purposes of a building.

3. A Board shall be established for the purpose of managing the National Galleries of Scotland and for such other purposes connected with the promotion of the Fine Arts in Scotland as may be prescribed. The Board shall be called the Board of Trustees for the National Galleries of Scotland, and from and after the establishment of such Board, the Board of Trustees for Manufactures in Scotland (in this Act referred to as the Board of Manufactures), established by the Linen and Hempen Manufactures (Scotland) Act, 1726, the Fisheries (Scotland) Act, 1726, and letters patent issued in pursuance of the last-mentioned Act, and by any amending Acts, shall cease to exist, and a reference to the Board of Manufactures in any Act shall be construed as a reference to the Board, and subject to the provisions of this Act all the powers, duties, and liabilities vested in or imposed on the Board of Manufactures by any letters patent, Treasury minute, deed, or other instrument shall, until otherwise prescribed, be vested in, transferred to, and imposed on the Board, and, subject as aforesaid, the powers and duties of the Board shall be such, and shall be exercised and discharged by the Board in such manner, as may be prescribed.

Establishment
of National
Galleries Trust
tees for Scotland

13 Geo. I. c.
13 Geo. I. c.

4.—(1) The Board shall be appointed by the Secretary for Scotland, and shall consist of seven members, three of whom when so appointed shall be members of elected local authorities in Scotland. The said seven members shall hold office for five years from the establishment of the Board, and may be re-appointed. At the expiration of every period of five years the Board shall be re-constituted as aforesaid. Four members shall be a quorum.

Constitution
of Board,

(2) The Board shall be established from and after the prescribed date not being a later date than the first day of April nineteen hundred and seven.

(3) Any vacancy caused by the death or resignation of any member shall, as soon as practicable, be filled by the Secretary for Scotland, but the person appointed to fill any such vacancy shall hold office so long only as the vacating member would have retained the same if such vacancy had not occurred.

(4) The Secretary for Scotland shall appoint one of the members of the Board chairman for such period, not being less than a year, as he may think fit, and the chairman shall have a casting as well as a deliberative vote.

(5) Subject as herein-after provided, the officers of the Board shall be appointed by the Secretary for Scotland or otherwise as may be prescribed.

(6) The Board shall comply with any instructions which may be issued by the Secretary for Scotland and shall make an annual report to him, which report shall be presented to Parliament.

transfer of
existing
offices.

5. The secretary and all clerks and other persons in the employment of the Board of Manufactures in any capacity immediately before the establishment of the Board shall from and after such establishment be transferred and attached to, and be under the control of, the Board, and shall hold their office by the same tenure and upon the same terms and conditions as if this Act had not passed, and while performing the same duties shall receive not less salaries or remuneration and be entitled to not less pensions (if any) than they would have received or been entitled to if this Act had not passed: Provided that it shall be lawful for the Treasury to grant a superannuation or other allowance under the Superannuation Acts, 1834 to 1887, to any person so transferred, as if he had been admitted to his office under the Board of Manufactures with a certificate from the Civil Service Commissioners or were otherwise qualified under the said Acts.

transfer of
property

6.—(1) It shall be lawful for the Secretary for Scotland to allocate out of the general fund of the Board of Manufactures such sums as may be prescribed—

(a) Towards the building and equipment of a school of art in Edinburgh;

(b) For the purchase, erection, and equipment of buildings and for the purchase of any land necessary in connection therewith, to be vested in the Commissioners of Works, and to be used for the purposes of the Royal Society of Edinburgh until otherwise prescribed with the consent of the Treasury.

(2) Subject as herein-after provided all property belonging to or vested in or held in trust for or by the Board of Manufactures immediately before the establishment of the Board shall from and after such establishment pass to and vest in and be held in trust for or by the Board, subject to all debts and liabilities affecting the same, and shall be held by the Board, and applied by them for such purposes connected with the promotion of the Fine Arts in Scotland as may be prescribed.

transfer of
buildings, &c.
Commission-
ers, or
other.

7. From and after the establishment of the Board the buildings presently vested in the Board of Manufactures, known as the Royal Institution, the National Gallery, the National Portrait Gallery, and Dunblane Cathedral, shall pass to and be vested in the Commissioners of Works, in the case of the two first-mentioned buildings for such purposes as may, with the consent of the Treasury, be determined by the Board.

two last-mentioned buildings for the purposes and subject to any rights for or subject to which such buildings are presently held. The said buildings shall be maintained and kept in repair by the said Commissioners, and the expense of such maintenance and repair, together with the expenditure incurred by the Board in the payment of officers and otherwise in connection with the management of the National Gallery and National Portrait Gallery, shall be paid out of moneys provided by Parliament, subject to such conditions in regard to the application of the capital moneys at the passing of this Act held by the Board of Manufactures for the maintenance and repair of any building specified in this section as may, with the consent of the Treasury, be prescribed: Provided that nothing in this Act contained and nothing done under this Act shall have the effect of imposing upon the heritors of the parish of Dunblane any obligations from which they were free at the passing of this Act.

8. From and after the first day of April nineteen hundred and seven, the annuity of two thousand pounds, payable in terms of the fifteenth Article of the Treaty of Union and of the Revenue of Scotland Act, 1713, which is presently payable out of moneys provided by Parliament in terms of the Public Revenue and Consolidated Fund Charges Act, 1854, shall, so long as it remains payable, be charged on, and payable to the Board out of the Consolidated Fund or the growing produce thereof, and shall be applied by them as may be prescribed.

Transfer of
annuity to
Consolidated
Fund.
5 Geo. I. c. 24
17 & 18 Vict.
c. 94.

9. From and after the establishment of the Board, the enactments mentioned in the schedule to this Act shall be repealed to the extent mentioned in the third column thereof.

Repeal.

SCHEDULE.

ENACTMENTS REPEALED.

Section 9.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
Geo. I. c. 20	Revenue of Scotland Act, 1713.	Section 14.
Geo. I. c. 26	Linen and Hempen Manufactures (Scotland) Act, 1726.	Whole Act.
Geo. I. c. 30	Fisheries (Scotland) Act, 1726.	Whole Act.
Geo. III.	Herring Fishery (Scotland)	Section 4.

Session and Chapter	Title or Short Title.	Extent of Repeal.
10 & 11 Vict. c. 91.	Manufactures Improvement Fund (Scotland) Act, 1847.	Whole Act.
13 & 14 Vict. c. 86	An Act for the erection on the Earthen Mound in the City of Edinburgh of Buildings for a National Gallery, and other purposes connected therewith and with the promotion of the Fine Arts in Scotland.	Whole Act.
17 & 18 Vict. c. 94.	Public Revenue and Consolidated Fund Charges Act, 1854.	Schedule (B.), second column the words "ditto for improving Fisheries and manufactures." Schedule (B.), third column, the words "5 Geo. I. c. 20."

CHAPTER 51.

An Act to continue various Expiring Laws.

[21st December 1906.]

WHEREAS the Acts mentioned in the Schedule to this Act are, in so far as they are in force and are temporary in their duration, limited to expire on the thirty-first day of December nineteen hundred and six;

And whereas it is expedient to provide for the continuance as in this Act mentioned of those Acts, and of the enactments amending or affecting the same:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The Acts mentioned in the Schedule to this Act shall, to the extent specified in column three of that Schedule, be continued until the thirty-first day of December nineteen hundred and seven, and shall then expire, unless further continued.

(2) Any unrepealed enactments amending or affecting the enactments continued by this Act shall, in so far as they are temporary in their duration, be continued in like manner, whether they are mentioned in the Schedule to this Act or not.

2. This Act may be cited as the Expiring Laws Continuance Act, 1906.